

BEFORE THE IOWA BOARD OF BEHAVIORAL SCIENCE

Re:	)	CASE NO. 15-0332
Mental Health Counselor License of	)	
	)	
DONNA LAWRENCE	)	COMBINED STATEMENT OF
License No. 02927	)	CHARGES, SETTLEMENT
Respondent.	)	AGREEMENT, AND FINAL ORDER

COME NOW the Iowa Board of Behavioral Science ("Board") and Donna Lawrence ("Respondent"), 304 S 3rd St., Albia, IA 52531, and enter into this Combined Statement of Charges, Settlement Agreement, and Final Order ("Order") pursuant to Iowa Code sections 17A.10 and 272C.3(4) (2015), and 645 IAC 12, stating the following:

A. STATEMENT OF CHARGES

COUNT I

Respondent is charged with conviction of a crime related to the profession or occupation of the licensee or the conviction of any crime that would affect the licensee's ability to practice within the profession, pursuant to Iowa Code section 147.55(5) and 645 IAC 33.2(12).

B. FACTUAL CIRCUMSTANCES

On June 24, 2016, Respondent pled guilty to unlawful possession of a prescription drug and tampering with records in Monroe County, Iowa.

C. SETTLEMENT AGREEMENT AND FINAL ORDER

1. The Board has jurisdiction over the parties and the subject matter of these proceedings.
2. Respondent admits the allegations in the Statement of Charges and acknowledges that the allegations, if proven in a contested case hearing, would constitute grounds for the discipline agreed to in this Order.
3. Execution of this Order constitutes the resolution of a contested case. Respondent has a right to hearing before the Board on the charges, but Respondent waives the right to hearing and all attendant rights, including the right to appeal or seek judicial review of the Board's action, by freely and voluntarily entering into this Order. Once entered, this Order shall have the force and effect of a disciplinary order entered following a contested case hearing.
4. Respondent acknowledges that she has the right to be represented by counsel on this matter.
5. Respondent agrees that the State's counsel may present this Order to the Board and may have *ex parte* communications with the Board while presenting it.

6. This Order is subject to approval by a majority of the full Board. If the Board does not approve this Order, it shall be of no force or effect to either party, and shall not be admissible for any purpose in further proceedings in this matter. If the Board approves this Order, it shall be the full and final resolution of this matter.

7. This Order shall be part of Respondent's permanent record and shall be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.

8. This Order shall not be binding as to any new complaints received by the Board.

9. Respondent understands the Board is required by federal law to report any adverse action to the National Practitioner Data Bank.

10. This Order, when fully executed, is a public record and is available for inspection and copying in accordance with the requirements of Iowa Code chapters 22 and 272C.

11. The Board's approval of this Order shall constitute a **FINAL ORDER** of the Board.

IT IS THEREFORE ORDERED:

12. Respondent is hereby **CITED** for pleading guilty to a crime related to the profession and **WARNED** that Respondent's failure to comply with the law governing the practice of mental health counseling in Iowa in the future could result in further discipline.

13. Respondent shall self-report to the Impaired Practitioner Program within ten (10) days and follow any requirements set for her by that program.

14. Should Respondent violate the terms of this Order, the Board may initiate action to impose other licensee discipline as authorized by Iowa Code chapters 147, 154D, and 272C and 645 IAC 13 and 33.

This Combined Statement of Charges, Settlement Agreement, and Final Order is voluntarily submitted by Respondent to the Board for its consideration on the 11th day of July, 2016.

Donna Lawrence
DONNA LAWRENCE
Respondent

This Combined Statement of Charges, Settlement Agreement, and Final Order is approved by the Iowa Board of Behavioral Science on the 4th day of August, 2016.



Chairperson
Iowa Board of Behavioral Science

Copies to:

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